

Tentative Rulings for July 27, 2026 Department 6

**To request oral argument, you must notify Judicial Secretary
Crystal Marias at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department 6 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **161 830 3643**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVRI2404672	NEWBERRY vs RISHABH INVESTMENT, LLC	DEMURRER ON COMPLAINT

Tentative Ruling:

This case has a demurrer and motion to strike pending filed by the same party or parties where the hearing dates do not coincide. Pursuant to Cal. Rules of Court, rule 3.1322(b), when both a motion to strike and a demurrer are filed, the motion to strike “must be noticed for hearing and heard at the same time as the demurrer.” Accordingly, the Demurrer (earlier-calendared hearing) is continued to 7/29/2026 at 8:30 a.m. (the later-calendared hearing) so that they can be heard together.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2502206	WALKER vs FAN	MOTION TO SET ASIDE CLERK'S DEFAULT

Tentative Ruling:

Hearing on this motion was vacated as moot in the Courts 7/13/2026 order granting the Plaintiffs request to file a Second Amended Complaint.

Below is the Court’s order from the **7/13/2026** hearing granting Plaintiffs’ request for file a Second Amended Complaint:

This motion is unopposed. Accordingly, the motion for leave to file a Second Amended Complaint is granted. Plaintiff is ordered to file the Second Amended Complaint within 10 days of this order and serve all parties.

Once the Second Amended Complaint is filed, it becomes the operative pleading and must be served on all Defendants, thus vitiating the Default entered on 11/26/2025 as to Defendant Kai Fan. Which makes the motion to set aside the default calendared for **7/27/2026** moot. The Court **will vacate the hearing set for 7/27/2026 and set aside the default of Kai Fan.**

The Case Management Conference set on 7/13/2026 is continued to **9/14/2026.**

Additionally, as a general rule, a trust is not a legal personality, and the trustee is the proper person to sue or be sued on behalf of such trust. However, a trustee's duties in connection with his or her office do not include the right to present argument in propria persona in courts of the state, because in this capacity the trustee would be representing interests of the beneficiaries and would therefore be engaging in the unauthorized practice of law in violation of Bus. & Prof. Code, § 6125. *Ziegler v. Nickel* (1998) 64 Cal.App.4th 545.

Section 6125 states, “No person shall practice law in California unless the person is an active member of the State Bar.” Under the statute, one who is not a licensed attorney cannot appear in court for another person. (*Russell v. Dopp* (1995) 36

Cal.App.4th 765, 774 [42 Cal.Rptr.2d 768]; Pickett v. Municipal Court (1967) 249 Cal.App.2d 844, 846

The Court issues an OSC to COREY WALKER, as Trustee of the New Beginnings Trust dated January 1, 2024, and as Trustee of LWY Riders LLC (a trust); and KEVIN WALKER, as Co- Trustee of the New Beginnings Trust dated January 1, 2024, and as Co- Trustee of LWY Riders LLC (a trust), as to why sanctions of up to \$1,500 or striking of its pleadings and dismissal should not be imposed for the failure to retain counsel.

A declaration under **RSC Local Rule 3116** is to be filed 5 court days prior to the next hearing on **9/14/2026**.